

Circular Memo.No.706/Spl.A3/99, Genl.Admn. (Spl.A) Dept., dt.28.10.1999: Anonymous, pseudonymous complaints - not to take any action.

Subject Heading : Anonymous, pseudonymous complaints - not to take any action

Ref : 1. Procedural Instructions of A.P.Vigilance Commission issued in Lr.No.66/VC.A2/99-3, dt.10.10.1994.

2. From the Central Vigilance Commission, Government of India, New Delhi, Circular No.3(v)/99/2, dt.29.06.1999.

The attention of all Departments of Secretariat, all Heads of Departments and all District Collectors is invited to para 4(b) and (c) of the Procedural Instructions of the A.P. Vigilance Commission issued in the reference first cited, which are extracted below:-

b) Anonymous and pseudonymous complaints:

Normally allegations contained in an anonymous petition ought not to be taken notice of except in cases where the details given are specific and, therefore, verifiable and the authority that receives such complaints may make such preliminary examination as may be necessary.

In the case of petitions which are pseudonymous in character and where a specific address has been given in the complaint it shall be open to the authority which received the petition to address a communication to the person purporting to be the sender of the petition for further information. If it transpires that there is no person of the name at the address given, then it may be considered that the petitioner's name is a pseudonym and the petition dealt with in the same manner as an anonymous petition.

c) A large number of disgruntled and disappointed persons are apt to make serious allegations against Public Servants out of malice or frustration. Such people generally do not reveal their identity and prefer to file anonymous or pseudonymous complaints even against Public Servants of known integrity and good repute. Care must, therefore, be exercised in dealing with such petitions.

2. The Central Vigilance Commission, Government of India, New Delhi in its Circular second cited, opined that one of the facts of life in today's administration is the widespread use of anonymous and pseudonymous petitions by disgruntled elements to blackmail honest officials. As per the orders issued by Department of Personnel & Training, Government of India, New Delhi in their letter No. 321/4/91-AVD.III, dt.29.09.1992, no action should be taken on anonymous and pseudonymous complaints and should be ignored and only filed. However, there is a provision available in this order that in case such complaints contain verifiable details, they may be enquired into in accordance with existing instructions. It is, however, seen that the exception provided in this order has become a convenient loophole for blackmailing. The Public Servants who receive the anonymous or pseudonymous complaints, generally follow the path of least resistance and order inquiries on these complaints. A peculiar feature of these complaints is that these are resorted to especially when a Public Servant's promotion is due or when an executive is likely to be considered for interview. If

nothing else, the anonymous or pseudonymous petition achieves the objective of delaying the promotion if not denying the promotion. These complaints demoralise many honest Public Servants.

3. The Central Vigilance Commission, Government of India, New Delhi has, therefore, issued orders in the reference second cited, that no action should at all be taken on any anonymous or pseudonymous complaints. They must just be filed.

4. The State Government has considered the orders issued by the Central Vigilance Commission, Government of India, New Delhi in the Circular second cited and decided to adopt the instructions of the Central Vigilance Commission, in respect of anonymous and pseudonymous petitions or complaints, received against cadre and non-cadre officers of the State Government.

Accordingly, it is hereby ordered that no action should at all be taken on any anonymous or pseudonymous petitions or complaints, received against the cadre and non-cadre officers of the State Government and they must just be filed.